

Interim Order Staying Production Through Disposition

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

Document code: A10

Filed: 2026-04-01

Interim stay

After reviewing the emergency motion and Calder's same-day response, the panel stays the entire March 25 compelled protected production before the April 1 5:00 p.m. deadline: all twenty logged items, underlying communications, drafts, work product, the complete memorandum, and responsive attachments.

Ashe may retain the complete memorandum and privilege log previously exchanged offline under protective handling. Effective upon entry on April 1, this order prevents first compelled delivery or litigation use of the twenty underlying items, communications, drafts, work product, and attachments and suspends the March 25 command in full. No earlier administrative stay was entered.

Scope of protection

Nonprivileged fact discovery, business records, and other requests may proceed subject to the district court's ordinary supervision.

Depositions, ordinary business records, claim data, and other nonprivileged sources are not stayed merely because they concern the same billing subject. The district court remains able to manage those requests. This boundary prevents emergency relief from becoming the broad discovery prohibition that Cinder Lake requested only as a severable alternative. District supervision therefore continues during the appellate stay, including resolution of requests that do not demand protected communications.

No merits determination

The order expresses no view on waiver, privilege, work product, mandamus entitlement, or the underlying retaliation claim.

The panel has reviewed the emergency motion and response solely to decide preservation. It has not invited an answer under Rule 21, assessed the three Cheney conditions, or decided Rule 502(a). The absence of merits language is intentional: a stay protects the court's ability to decide without predicting how that decision will come out.

Sequencing

The emergency phase is complete. No merits answer is accepted by this order; any answer obligation must arise from a separate Rule 21 order.

With the immediate disclosure risk controlled, the court can determine whether to request full merits briefing. This stay creates no answer or reply deadline and sets no oral argument. Its duration is tied to disposition, subject to modification by the panel, so any subsequent briefing or hearing remains dependent on a separate court order.

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